



U.S. Department
of Transportation

**Research and
Special Programs
Administration**

MAY 25 2000

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10255
(SECOND REVISION)

EXPIRATION DATE: April 30, 2002

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Sexton Can Company, Inc.
Cambridge, MA
2. PURPOSE AND LIMITATIONS:
 - a. This exemption authorizes the manufacture, mark, sale and use of non-DOT specification 2Q containers conforming with all regulations applicable to a DOT specification 2Q except for side wall thickness as specified herein, for the transportation in commerce of the materials authorized by this exemption. This exemption provides no relief from any Hazardous Materials Regulation other than as specifically stated herein.
 - b. The safety analyses performed in development of this exemption only considered the hazards and risks associated with transportation in commerce.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171- 180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 173.304, 178.33a-2, 178.33a-6, 178.33a-7, 178.33a-8 and 178.33a-9.
5. BASIS: This exemption is based on the application of the Sexton Can Company, Inc. dated April 18, 2000, submitted in accordance with § 107.109.

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6. HAZARDOUS MATERIALS (49 CFR § 172.101):

Proper Shipping Name/ Hazardous Materials Description	Hazard Class/ Division	Identi- fication Number	Packing Group
Dichlorodifluoromethane, R-12, and those flammable and non-flammable gases authorized for transport in a DOT Specification 2Q container	Division 2.2	UN1028	N/A

7. SAFETY CONTROL MEASURES:

a. PACKAGING - Packaging prescribed is a non-refillable non-DOT specification drawn and ironed type inside metal container conforming with the Sexton drawing No. LP-88-129A dated 3-23-88, on file with the Office of Hazardous Materials Exemptions and Approvals (OHMEA), and DOT Specification 2Q (§ 178.33a) except as follows:

b. § 178.33a-2 Type and size. The maximum capacity of the containers covered by this exemption may not exceed 33 cubic inches, (18.5 fluid ounces) nominal. The maximum diameter may not be more than 2.72 inches.

c. § 178.33a-6 Manufacture.

(b)(2) Side seams are not permitted.

d. § 178.33a-7 Wall thickness. The minimum side wall thickness for containers manufactured under this exemption may not be less than 0.0075 inches. The minimum thickness of the bottom piece may not be less than 0.018 inches and must contain a pressure relief device (PRD) which must function between 280 and 300 psig internal pressure.

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e. § 178.33a-8 Tests.

Burst Test. For the purpose of qualification burst tests, each 5000 containers or less, successively produced as a batch or part thereof, must constitute a lot. Four containers, two with PRD and two without PRD, taken randomly from each lot and complete with the ends assembled must be pressure tested to destruction. The burst pressure if related to the pressure relief device may not be less than 280 pounds per square inch. The burst pressure of the test containers without the PRD, with the resulting failure in the side wall or double seam, may not be less than 380 pounds per square inch. If any of the test containers fails to meet the above requirements, the lot must be rejected. However, an additional 5 randomly selected pairs of test containers from that lot may be burst tested to qualify that lot. If any of the additional test containers fail the burst test, that lot must be rejected.

f. § 178.33a-9 Marking.

(1) * * *

(2) "DOT-E 10255 NRC 180/270 M" in lieu of "DOT 2Q"

g. After filling and prior to shipment, each completed inside metal container must meet the requirements in § 173.304(e) (1).

h. Each completed inside metal container must be packed in a strong outside packaging as prescribed in § 173.301(k).

8. SPECIAL PROVISIONS:

a. In accordance with the provisions of Paragraph (b) of § 173.22a, persons may use the packaging authorized by this exemption for the transportation of the hazardous materials specified in paragraph 6, only in conformance with the terms of this exemption.

b. A person who is not a holder of this exemption, but receives a package covered by this exemption, may reoffer it for transportation provided no modifications or

changes are made to the package and it is offered for transportation in conformance with this exemption and the HMR.

c. A current copy of this exemption must be maintained at each facility where the package is offered or reoffered for transportation.

d. Each packaging manufactured under the authority of this exemption must be either (1) marked with the name of the manufacturer and location (city and state) of the facility at which it is manufactured or (2) marked with a registration symbol designated by the Office of Hazardous Materials Exemptions and Approvals for a specific manufacturing facility.

e. A current copy of this exemption must be maintained at each facility where the package is manufactured under this exemption. It must be made available to a DOT representative upon request.

f. MARKING - Each outside packaging must be marked "INSIDE CONTAINERS COMPLY WITH DOT-E 10255."

g. Test data obtained under paragraph 7.e. of this exemption must be kept on file and be made available to a DOT representative upon request.

9. TRANSPORTATION AUTHORIZED: Motor vehicle, rail freight, cargo vessel, cargo aircraft only.

10. MODAL REQUIREMENTS: A current copy of this exemption must be carried aboard each cargo vessel and cargo aircraft used to transport packages covered by this exemption. The shipper must furnish a copy of this exemption to the air carrier before or at the time the shipment is tendered.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this exemption and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

o All terms and conditions prescribed in this exemption and the Hazardous Materials Regulations, Parts 171-180.

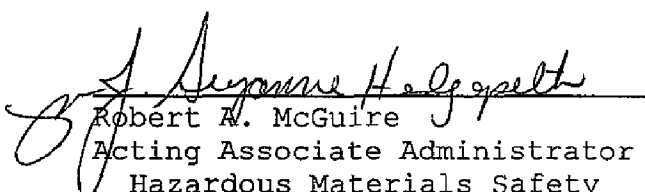
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this exemption must receive training on the requirements and conditions of this exemption in addition to the training required by §§ 172.700 through 172.704.

No person may use or apply this exemption, including display of its number, when the exemption has expired or is otherwise no longer in effect.

12. REPORTING REQUIREMENTS: The carrier is required to report any incident involving loss of packaging contents or packaging failure to the Associate Administrator for Hazardous Materials Safety (AAHMS) as soon as practicable. (Sections 171.15 and 171.16 apply to any activity undertaken under the authority of this exemption.) In addition, the holder(s) of this exemption must also inform the AAHMS, in writing, as soon as practicable of any incidents involving the package and shipments made under this exemption.

Issued at Washington, D.C.


Robert A. McGuire
Acting Associate Administrator for
Hazardous Materials Safety

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(DATE)

Address all inquiries to: Associate Administrator for
Hazardous Materials Safety, Research and Special Programs
Administration, Department of Transportation, Washington, D.C.
20590. Attention: DHM-31.

The original of this exemption is on file at the above office.
Photo reproductions and legible reductions of this exemption
are permitted. Any alteration of this exemption is
prohibited.

Copies of exemptions may be obtained from the AAHMS, U.S.
Department of Transportation, 400 7th Street, Washington, DC
20590-0001, Attention: Docket Section, 202-366-5046.

PO: sdc